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Case Number: 25SMCV06313 Hearing Date: September 15, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ROBERT H. AMES,

Plaintiff,

v.

CHRISTOPHER D. WALTON,

Defendant.

Case No.: 25SMCV06313

Hearing Date: September 15, 2026

[TENTATIVE] order RE:

defendant christopher

walton's special motion to

strike portions of plaintiff's

complaint under the anti-slapp

statute

BACKGROUND

This is a malicious prosecution case. Plaintiff Robert Ames alleges that on September 12, 2022 Defendant Christopher Walton “created and disseminated a completely false 2-page written correspondence he labeled in bold capital letters “URGENT COMMUNIUCATION?” addressed it to the City of Santa Monica, the Police Chief, the City Attorney and the Mayor.”

The letter purportedly contained “horrific vile descriptions of Plaintiff” and alleged Plaintiff had engaged in “false dangerous actions and crimes” upon Walton’s friend and sexual partner, Monique Eagle, as well as her minor children. The letter also allegedly demanded a “No Knock Arrest Warrant” against Plaintiff, claiming “This is a dangerous life threatening situation that requires immediate action”

As a result of Walton’s letter, Plaintiff claims the City Attorney for Santa Monica filed two “false” misdemeanor counts against Plaintiff in September 2023. Plaintiff alleges that the charges were subsequently withdrawn by the state.

In addition, Plaintiff also claims that Walton initiated a civil proceeding in the Los Angeles Superior Court, seeking a TRO against Plaintiff. Plaintiff claims that Walton never served any of the court documents on her, which allowed Walton to “secure a 2-year permanent court order issued by the court against plaintiff under false light.” Plaintiff is now suing Walton for malicious prosecution and intentional infliction of emotional distress. Both parties are appearing in pro per.

This hearing is on Walton’s special motion to strike. Walton argues that Plaintiff’s entire complaint is based on his reporting to government agencies which constitutes protected activity. Walton further argues that Plaintiff has no chance of prevailing on his claims because Plaintiff cannot meet the elements of a malicious prosecution claim as Walton did not bring any legal action against Plaintiff. Additionally, Walton argues that the claims are time-barred as well as barred by the litigation privilege.

LEGAL STANDARD

“Litigation of an anti-SLAPP motion involves a two-step process. First, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. Second, for each claim that does arise from protected activity, the plaintiff must show the claim has “at least ‘minimal merit.’ If the plaintiff cannot make this showing, the court will strike the claim.” (Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009.)

DISCUSSION

First Prong

On the first prong, “courts are to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity.” (Bonni, 11 Cal.5th at 1009.) “A defendant need only make a prima facie showing at this stage.” (Ojeh v. Brown (2019) 43 Cal.App.5th 1027, 1035–1036.)

Here, Plaintiff alleges claims based on Walton's allegedly false reporting to several government agencies, including the police, as well as his filing of a civil suit seeking a TRO. Under California law, statements to the police are considered protected activity. (Comstock v. Aber, (2012) 212 Cal.App.4th 931, 941.) This is because such communications arise from a person's right to petition the government.

Moreover, even allegedly false reports to the police constitute protected activity. (Chabak v. Monroy, (2007) 154 Cal.App.4th 1502, 1512 [the defendant's allegedly false report to police that the plaintiff inappropriately touched her was deemed protected activity because there was no uncontroverted evidence showing the report to be false]; see also Siam v. Kizilbash, (2005) 130 Cal.App.4th 1563, 1569–1570 [defendant's allegedly false report to school official was protected activity, notwithstanding plaintiff's allegation of falsity, because no uncontroverted evidence showed that it was false].) The mere allegation that the defendant engaged in unlawful activities is not sufficient to render the defendant's alleged actions unlawful as a matter of law and outside the protection of the Anti-SLAPP statute. (See Dwight R. v. Christy B., (2013) 212 Cal.App.4th 697, 712.)

Of course, where a defendant admits that his report to the police (or any other governmental agency) was false, the report no longer constitutes protected activity. (Lefebvre v. Lefebvre, (2011) 199 Cal.App.4th 696.) In Lefebvre, a wife falsely reported to police that her husband had threatened to kill her and her children. (Id. at 700.) In response, the husband filed an action against the wife and her co-conspirator for, inter alia, malicious prosecution, false arrest, and intentional infliction of emotional distress. (Id. at 701.) In affirming the trial court's order denying the wife's special motion to strike, the court in Lefebvre held that because the wife's report to the police was admittedly false and therefore illegal, it did not constitute conduct in furtherance of her constitutional rights of petition or free speech. (Id. at 967.) In this case, however, Walton makes no admission that his reporting was false.

In addition, Walton's filing of the lawsuit against Plaintiff (to secure a restraining order) clearly constitutes protected activity. "The filing of lawsuits is an aspect of the First Amendment right of petition" (Soukup v. Law Offices of Herbert Hafif, (2006) 39 Cal.4th 260, 291), and thus is a protected activity under the anti-SLAPP statute. (Nunez v. Pennisi, (2015) 241 Cal.App.4th 861, 872 [malicious prosecution]; Wallace, 196 Cal.App.4th at 1182–1193 [unlawful detainer].)

Second Prong

Once a defendant demonstrates that protected conduct is at issue, the plaintiff must show that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. (See Navellier v. Sletten (2002) 29 Cal.4th 82, 88-89.) "Precisely because the statute (1) permits early intervention in lawsuits alleging unmeritorious causes of action that implicate free speech concerns, and (2) limits opportunity to conduct discovery, the plaintiff's burden of establishing a probability of prevailing is not high: We do not weigh credibility, nor do we evaluate the weight of the evidence. Instead, we accept as true all evidence favorable to the plaintiff and assess the defendant's evidence only to determine if it defeats the plaintiff's submission as a matter of law. Only a cause of action that lacks 'even minimal merit' constitutes SLAPP." (Overstock.com, Inc. v. Gradient Analytics, Inc. (2007) 151 Cal.App.4th 688, 699.)

The SLAPP statute's second element--a "probability of prevailing"--means a "reasonable probability of prevailing, not prevailing by a preponderance of the evidence. For this reason, a court must apply a 'summary-judgment-like' test, accepting as true the evidence favorable to the plaintiff and evaluating the defendant's evidence only to determine whether the defendant has defeated the plaintiff's evidence as a matter of law." (Gerbosi v. Gaims, Weil, West & Epstein, LLP (2011) 193 Cal.App.4th 435, 444.)

Walton argues that because the prosecutor initiated the proceeding, he cannot be sued for malicious prosecution and therefore, Plaintiff has no probability of prevailing. But that is not the law.

A private person may be civilly liable for malicious prosecution of a criminal action without personally signing the complaint that initiated the action. (Zucchet, 229 Cal.App.4th at 1481.) The test is whether the defendant was "instrumental in causing the prosecution." (Sullivan, 12 Cal.3d at 720.) The defendant may be liable for initiating, instigating, procuring, or being

actively instrumental in putting in motion the criminal action. (Leon, supra, 14 Cal.5th at 921; Pacific Gas & Electric Co. v. Bear Stearns & Co. (1990) 50 Cal.3d 1118, 1131, fn. 11.) A defendant who seeks out the police or prosecutorial authorities and falsely reports facts to them indicating the plaintiff committed a crime can be liable for malicious prosecution. (Sullivan, 12 Cal.3d at 720.)

However, the Court agrees that Plaintiff has not sufficiently shown that the criminal proceedings were terminated in her favor. Plaintiff only alleges that the charges were dismissed. "It is not enough, however, merely to show that the proceeding was dismissed." (Jaffe v. Stone (1941) 18 Cal.2d 146, 150.) If a dismissal "is of such a nature as to indicate the innocence of the accused, it is a favorable termination sufficient to satisfy the requirement. If, however, the dismissal is on technical grounds, for procedural reasons, or for any other reason not inconsistent with [his] guilt, it does not constitute a favorable termination." (Id.) Thus, "[w]hen the proceeding terminates other than on the merits, the court must examine the reasons for termination to see if the disposition reflects the opinion of the court or the prosecuting party that the action would not succeed." (Susag v. City of Lake Forest (2002) 94 Cal.App.4th 1401, 1411, italics added.) Ames cites no evidence indicating the reason(s) for the dismissal, and thus he cannot establish favorable termination as a matter of law. (Doe v. San Diego-Imperial Council (2017) 16 Cal.App.5th 301, 315.)

As to the civil proceedings initiated by Walton, the complaint does not allege at all that they were terminated in Plaintiff's favor. To the contrary, the Complaint alleges that Walton was able to secure a two-year permanent restraining order against him. Accordingly, as to this civil proceeding as well, Plaintiff cannot state a malicious prosecution claim.

As to the intentional infliction of emotional distress claim, the Court concludes it is barred by the litigation privilege. Section 47, subdivision (b), "establishes a privilege that bars liability in tort for the making of certain statements." (Hagberg v. California Federal Bank (2004) 32 Cal.4th 350, 360.) Subdivision (b)(3) and (b)(4) confer immunity from civil liability for statements made in any "official proceeding authorized by law" and "the initiation or course of any other proceeding authorized by law...". It is an "absolute privilege" and bars all tort causes of action except a claim for malicious prosecution. (Whelan v. Wolford (1958) 164 Cal.App.2d 689, 694.)

"[I]t is now well established that the litigation privilege applies without regard to 'motives, morals, ethics or intent.' (Silberg, 50 Cal.3d at . 220.) The litigation privilege is simply a test of connectedness or logical relationship to litigation. (Blanchard v. DIRECTV, Inc., 123 Cal.App.4th at 922.)

The litigation privilege "serves broad goals of guaranteeing access to the judicial process, promoting the zealous representation by counsel of their clients, and reinforcing the traditional function of the trial as the engine for the determination of truth. Applying the litigation privilege to some forms of unlawful litigation-related activity may advance those broad goals notwithstanding the occasional unfair result in an individual case." (Flatley v. Mauro (2006) 39 Cal.4th 299, 324.) "To achieve this purpose of curtailing derivative lawsuits, the courts have interpreted the litigation privilege broadly." (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1485.) Any doubt about whether the privilege applies is resolved in favor of applying it. (Optional Capital, Inc. v. Akin Gump, Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 116.)

Here, the litigation privilege bars Plaintiff's IIED claim which is based solely on Walton's allegedly false reporting to government agencies and his initiation of a civil proceeding to obtain a TRO against Plaintiff. Accordingly, the Court concludes that Plaintiff has no probability of prevailing on either claim, and the Court grants the special motion to strike without leave to amend.

CONCLUSION

For the foregoing reasons, the Court GRANTS the special motion to strike without leave to amend.

DATED: September 15, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court